EXHIBIT B

PROB 12C
(06/17)

December 16, 2024
pacts id: 2121002

UNITED STATES DISTRICT COURT
FOR THE
SOUTHERN DISTRICT OF CALIFORNIA

Petition for Warrant or Summons for Offender Under Supervision

Name of Offender: Roberto Antonio SANDOVAL (English) **Dkt. No.:** 16CR01694-001-JLS

Reg. No.: 51931-298

Name of Sentencing Judicial Officer: The Honorable Janis L. Sammartino, U.S. District Judge

Original Offense: 18 U.S.C § 2252(a)(2), Receipt of Images of Minors Engaged in Sexually Explicit Conduct, a Class C Felony.

Date of Sentence: August 23, 2017

Sentence: 97 months in custody; 10 years of supervised release *(Special Conditions: Refer to Judgment and Commitment Order.)*

Modification: On August 11, 2023, conditions were modified to include updated computer monitoring condition and sex offender treatment condition

Type of Supervision: Supervised Release **Date Supervision Commenced:** July 18, 2023

Asst. U.S. Atty.: Jennifer E. McCollough **Defense Counsel:** Jodi Thorp
(Appointed)
619-233-3169

Prior Violation History: None.

PETITIONING THE COURT

TO SUMMON THE OFFENDER TO APPEAR BEFORE THE COURT

The probation officer believes that the offender has violated the following condition(s) of supervision:

CONDITION(S)	ALLEGATION(S) OF NONCOMPLIANCE
(Special Condition) Not possess or view any materials such as videos, magazines, photographs, computer images or other matter that depicts "sexually explicit conduct" involving children as defined by 18 USC § 2256(2) and/or "actual sexually explicit conduct" involving adults as defined by 18 USC § 2257(h)(1), and not patronize any place where such materials or entertainment are the primary material or entertainment available.	1. On or about August 4, 2024, Mr. Sandoval patronized websites where images of sexually explicit conduct of adults is the primary material or entertainment available, as evidenced by the Forensic Examination Report dated October 7, 2024, and by Mr. Sandoval's own admission to the probation officer on August 6, 2024. 2. On or about August 4, 2024, Mr. Sandoval viewed materials that depict actual sexually explicit conduct involving adults as defined by 18 USC § 2257 (h)(1), as evidenced by the Forensic Examination Report dated October 7, 2024.

Grounds for Revocation: As to allegation 1 and 2, on August 5, 2024, during a routine review of Mr. Sandoval's computer monitoring reports, it was discovered that on August 4, 2024, Mr. Sandoval accessed a website where sexually explicit images of adults are available. On August 6, 2024, Mr. Sandoval reported to the U.S. probation office to discuss the conduct observed on his computer monitoring. This officer showed Mr. Sandoval several printed off screenshots of what was observed, to include an image of a "CAM4 warning page" which was retrieved from his computer monitoring screen shots, which warns users that the site being accessed contains sexually explicit material. Mr. Sandoval admitted he knew he was entering a "porn site" and did not read the warning label because he knew he was over 18 years of age. When Mr. Sandoval was asked why he was viewing pornography he expressed he "did not intend" to view sexually explicit images despite going onto pornographic websites. Due to the violation conduct, Mr. Sandoval's monitored Dell laptop was seized on this date for further forensic review.

On October 7, 2024, a forensic exam was completed on Mr. Sandoval's Dell computer. A review of the forensic extraction report revealed Mr. Sandoval frequented several websites on his monitored device where sexually explicit material of adults was available to include: Pornhub, Chaturbate, Babepedia, Cam4, Xhamster, xxxhdsex.cc, Leeporn. On August 4, 2024, at 10:35 PM, Mr. Sandoval accessed https://www.pornhub.com. A review of the website Mr. Sandoval visited revealed a video displaying a woman walking down the street in a thong bikini bending over, exposing her vagina. On that same date at 10:48 PM, Mr. Sandoval accessed https://xhamster.com/videos/string-bikini-5-pack.. A review of the website revealed a bold header "xHamster is adults only website". Once in the site there were many sexually explicit thumb nail videos which displayed sexually explicit images such as a woman laying on her back with an erect penis over her face. The specific video title *string-bikini-5-pack* shows a woman in a string bikini with her legs spread open exposing and rubbing her vagina.

Additionally, the forensic report also revealed the offender used the program Data Destroyer. The forensic report provided the following description of data destroyer: "The program is known for permanently deleting files and folders and can be used for secure deletion of all files on a disk (but it cannot be used to wipe an entire hard drive, including free space). Mr. Sandoval denied any knowledge of use of this program.

VIOLATION SENTENCING SUMMARY

SUPERVISION ADJUSTMENT

As previously reported to your Honor, Mr. Sandoval had a monitored device seized on February 14, 2024, after determining the computer monitoring program was unable to provide consistent data from his device for this officer to review. As such, a forensic exam was conducted to determine if Mr. Sandoval was utilizing any software in attempts to circumvent the monitoring software. The forensic investigation revealed that Mr. Sandoval had conducted a system restore on his device on January 28, 2024, at 7:57am. Additionally the forensic review of the device revealed Mr. Sandoval had been using an application by the name Data Destroyer. The forensic report revealed the offender used the application on the following dates October 9, 2023, at 6:32am, November 4, 2023, at 3:30pm, November 14, 2023, at 3:29pm, December 13, 2023, at 2:52pm. May 6, 2022, at 10:20pm, January 9th, 2024, at 4:29pm, and February 11, 2024, at 1:55pm. When confronted about this activity, the offender confirmed he was the sole user of the computer. However, he denied ever conducting a system restore and additionally denied using Data Destroyer.

On April 9, 2024, Mr. Sandoval was found to be in possession of an unapproved cellular device. Mr. Sandoval reported that he had purchased this device for his mother. This cell phone was found in Mr. Sandoval's vehicle. Although it was discovered that this device was not internet capable it did have the ability to store and transmit media such as photos and videos. The device had been reset to factory settings. Mr. Sandoval was admonished for being in possession of an unauthorized device, reminded of the importance of his supervision conditions and reminded to comply with his computer monitoring agreement.

As alleged above, during a routine review of Mr. Sandoval's computer monitoring, it was discovered he had been patronizing adult pornographic websites. Mr. Sandoval contributed his violation conduct to going through issues with his wife and stopping the anti-depressant medication Paxil, which also is intended to assist in reducing his libido. On August 22, 2024, Mr. Sandoval, his therapist, and the undersigned met to address his sexual preoccupations and impulse control. During this meeting, Mr. Sandoval admitted he made a poor decision to view the sexually explicit material. He also acknowledges his struggle with controlling his impulses as it relates to drinking and pornography. During this meeting, Mr. Sandoval presented a well thought out safety plan on how he plans to utilize his cellular device in a way that would assist him in remaining in compliance with his treatment goals as well as his supervision conditions. Part of Mr. Sandoval's plan included avoiding sites that provide sexualized images of women that would lead him to seeking out more explicit images, time restrictions online, and intentional browsing. On this date he was approved to begin to use his monitored cell phone again, with the agreement he would follow the safety plan presented an approved. The dell laptop remained in probations possession as it was still undergoing forensic examination.

As noted above, Mr. Sandoval submitted a well thought out safety plan for the use of his smart phone; however, since that date he has been unsuccessful achieving his treatment goals and following the safety plan that he submitted. On October 16, 2024, Mr. Sandoval contacted his treatment team and the undersigned to report that while searching for a Halloween outfit for his wife he had "succumb" to temptation and began looking at outfits of prepubescent minors on the website. Mr. Sandoval admitted to screen shotting some of the images on his cellular device. Upon reviewing the offender's computer monitoring report the images that were saved of prepubescent minors, were as follows:

- A prepubescent girl wearing superhero costume.
- A prepubescent girl with her back facing the camera and a tail coming out of her dress,
- A prepubescent girl dressed as a ladybug,
- A prepubescent girl dressed as a bloody bride.

To Mr. Sandoval's credit he was affirmed in that he quickly reached out to his treatment team as well as probation and denied masturbating to these images. To address his ongoing mental health needs, Mr. Sandoval has enrolled himself in individual counseling at San Ysidro Health Center which began on August 14, 2024. He has also sought out the medication Naltrexone to help reduce his drinking urges. He reports he is currently engaged in community support by attending Sex Addicts Anonymous meetings via telephone. Mr. Sandoval expressed he would be willing to attend substance use disorder community group classes however has yet to begin due to schedule conflicts. Additionally, Mr. Sandoval has failed to sign releases of information, preventing the undersigned from communicating with Ysidro Health Center related to his individual counseling and substance use disorder.

Based on the ongoing violation conduct resulting from Mr. Sandoval's use of internet capable devices, and his ongoing use of software that can circumvent monitoring and remove data from his devices, which is not approved, court intervention appears necessary to remind Mr. Sandoval of the seriousness of his court ordered conditions, and to request additional conditions to better supervise Mr. Sandoval.

OFFENDER PERSONAL HISTORY/CHARACTERISTICS

According to the presentence report Mr. Sandoval began drinking alcohol excessively shortly after his divorce. He reportedly was drinking a pint of vodka per day. To the offender's credit he did successfully complete RDAP; however, upon his release from custody, despite the tools he learned in the program related to sobriety, Mr. Sandoval admittedly began drinking alcohol again. On January 25, 2024, Mr. Sandoval admitted to the probation officer after drinking a tall can of beer he felt like he needed another beer and drove to the liquor store to get another beer. Mr. Sandoval expressed he knew he was not over the legal limit which is why he felt fine driving. This conduct and his decision making is of great concern given his history with DUI arrests. Of additional concern, Mr. Sandoval is mixing alcohol with multiple psychotropic medications he is currently prescribed, as he believes drinking alcohol while on the medication has no impact on him. In addition to the psychotropic medications the offender is also being prescribed medication to reduce the urge to consume alcohol.

As mentioned above Mr. Sandoval was arrested for two DUI's as well as vandalism. The PSR notes that the vandalism was a domestic disturbance and Mr. Sandoval smelled of alcohol. Mr. Sandoval has struggled with depression and was previously diagnosed with schizoaffective disorder and delusional disorder. Mr. Sandoval began drinking alcohol at age 15 and his drinking progressed to drinking a pint of vodka per day. It was also noted in the PSR that Mr. Sandoval suffered from alcohol abuse.

As it relates to mental and emotional health Mr. Sandoval was previously diagnosed with schizoaffective disorder, schizophrenia, and delusional disorder. Should be noted Mr. Sandoval disclosed during his sex offender treatment assessment that he became "strongly suicidal" which was related to a psychotic break at the age of 22, while in Cuba. Where he reported he had very little sleep for a period of about five days. Mr. Sandoval reported he became delusional and paranoid. The therapist reported based on Mr. Sandoval's report he suffered from "psychotic decompensation". Mr. Sandoval disclosed medical personnel intervened in Cuba after his attempt at "killing himself". He was transported to a medical facility and kept there for five days until returning to the states. After returning to the United States Mr. Sandoval reported his symptoms worsened and he again became suicidal and visited a mental health center.

SENTENCING OPTIONS

CUSTODY

Statutory Provisions: Upon the finding of a violation, the court may modify the conditions of supervision; extend the term (if less than the maximum authorized term was previously imposed); or revoke the term of supervised release. 18 U.S.C. § 3583(e)(2) and (3).

If the court revokes supervised release, the maximum term of imprisonment upon revocation is 2 years. 18 U.S.C. § 3583(e)(3).

USSG Provisions: The allegation (Possess or view sexually explicit material and Frequenting websites with sexually explicit material) constitutes a Grade C violation. USSG §7B1.1(a)(3)(B), p.s.
Upon a finding of a Grade A violation the court shall revoke supervised release. USSG §7B1.3(a)(1), p.s.

A Grade C violation with a Criminal History Category II (determined at the time of sentencing) establishes an **imprisonment range of 4 to 10 months.** USSG § 7B1.4, p.s.

REIMPOSITION OF SUPERVISED RELEASE

If supervised release is revoked and the offender is required to serve a term of imprisonment, the court can reimpose supervised release upon release from custody. The length of such a term shall not exceed the term of supervised release authorized by statute for the offense that resulted in the original term of supervised release, less any term of imprisonment imposed upon revocation. 18 U.S.C.§ 3583(h).

In this case, the court has the authority to reimpose any term of years or life supervised release, less any term of imprisonment imposed upon revocation. 18 U.S.C. § 3583(k). The PROSECUTORIAL REMEDIES AND OTHER TOOLS TO END THE EXPLOITATION OF CHILDREN TODAY ACT OF 2003, the Protect Act, Title 1 § 101 amends 18 U.S.C. § 3583 by adding the following: "(k) Notwithstanding subsection (b), the authorized term of supervised release for any offense under section 1201 involving a minor victim, and for any offense under section 1591, 1594(c), 2241, 2242, 2243, 2244, 2245, 2250, 2251, 2251A, 2252, 2252A, 2260, 2421, 2422, 2423, or 2425, is any term of years not less than 5, or life."

RECOMMENDATION/JUSTIFICATION

Mr. Sandoval's conduct constitutes a breach of the court's trust. To Mr. Sandoval's credit he has sought out his own individual counseling and has attempted to utilize other measures to help assist him in controlling his sexual urges such as enabling restrictive controls on his device, as well as seeking out medication to reduce his libido and his urge to drink alcohol. Despite his best efforts, he has still violated his supervision conditions. Mr. Sandoval's poor judgement and decision-making highlights his continued struggle with impulse control and deviant sexual preoccupation in that he viewed sexually explicit images and accessed sexually explicit sites despite being fully aware of his supervision restrictions. Although Mr. Sandoval's drinking alcohol, notably while on psychotropic medication, in and of itself are not violations, the conduct he engages in while under the influence is extremely concerning given the egregious nature of Mr. Sandoval's instant offense, his history with alcohol and prior suicidal attempts. It should also be noted that during the offender's sex offender treatment intake assessment he was asked of the relationship between his use of alcohol and pornography to which Mr. Sandoval stated "well, they usually coincided". He was then asked was it easier to view child pornography when intoxicated? To which he responded "I never really thought about it like that. I guess you could say that. If I was drunk, I'd be less conscientious about what I was doing. Yeah".

At this time, although Mr. Sandoval's conduct is concerning, and directly violates his conditions of release, the undersigned believes there are alternative options available, in lieu of custody, to work with Mr. Sandoval in the community. These options include the recommendation for more specific conditions of release relating to his use of internet capable devices, and his participation in drug and alcohol treatment. Probation believes these additional conditions will further support Mr. Sandoval in his recovery and supervision adjustment. It is apparent that he continues to struggle with sexual preoccupation and substance abuse which has led him to engage in the above noted violation conduct. It is believed that the additional requested conditions will address Mr. Sandoval's challenges related to complying with computer monitoring and also address his substance abuse disorder. Although Mr. Sandoval is agreeable to complete substance abuse classes, probation believes the condition is necessary to ensure compliance and accountability. Additionally, it is believed that a collaborative approach with probation and treatment will not only serve as accountability for the offender but will also provide more opportunities for successful rehabilitation. It is probation's hope that this court intervention will serve as a reminder to Mr. Sandoval to take his conditions serious, and that any further violation conduct may result in a custodial recommendation.

Conditions to add:

The defendant shall not use any software program or device designed to hide, alter or delete records/logs of his computer use, internet activities of the files stored on my assigned computer(s). This includes but not limited to the use of encryption, steganography, and cache/cookie removal software. Do not activate or download encryption software, and provide all passwords to the probation officer, and not make any changes to his passwords without notifying probation ahead of time.

The defendant understands that he may not use or possess any Cloud-based storage programs or removable storage device, or which allow portable stand-alone applications to be installed or used independent of his computer operating system without prior consent of the probation officer.

The defendant shall not install new hardware, software, or effect repairs on his computer system without receiving prior permission from the probation officer. The probation officer believes that the action requested above is necessary for the following reasons.

Participate in a program of drug or alcohol abuse treatment, including drug testing and counseling, as directed by the probation officer. Allow for reciprocal release of information between the probation officer and the treatment provider. May be required to contribute to the costs of services rendered in an amount to be determined by the probation officer, based on ability to pay.

Previous Imposed Conditions:

Submit your person, property, residence, abode, vehicle, papers, computer, social media accounts, any other electronic communications or data storage devices or media, and effects to search at any time, with or without a warrant, by any law enforcement or probation officer with reasonable suspicion concerning a violation of a condition of probation/supervised release or unlawful conduct, and otherwise in the lawful discharge of the officer's duties. 18 U.S.C. § 3563 (b)(23); 3583 (d)(3). Failure to submit to a search may be grounds for revocation; you must warn any other residents that the premises may be subject to searches pursuant to this condition.

Consent to third party disclosure to any employer, potential employer, concerning any restrictions that are imposed by the court.

Not use or possess any computer, computer-related devices (pursuant to 18 U.S.C. § 1030(e)(1)), which are capable of accessing, storing, or transmitting visual depictions of "sexually explicit conduct" involving children as defined by 18 USC § 2256(2) and/or "actual sexually explicit conduct" involving adults as defined by 18 USC § 2257(h)(1), without prior approval by the court or probation officer, all of which are subject to search and seizure. Such devices include, but are not limited to smart phones, smart watches, video game consoles, digital tablets, I-pods, and not excluding anything else that has the capability of doing so in the future and can communicate data via modem, dedicated connections or cellular networks, and their peripheral equipment. The offender must consent to installation of monitoring software and/or hardware on any computer or computer-related devices owned or controlled by the offender that will enable the probation officer to monitor all computer use and cellular data. The offender must pay for the cost of installation of the computer software.

Not associate with, or have any contact with, any known sex offenders unless in an approved treatment and/or counseling setting.

Not initiate any contact (personal, electronic or otherwise) or associate with anyone under the age of 18, unless in the presence of a supervising adult who is aware of the offender's deviant sexual behavior and nature of offense and conviction, with the exception of the offender's biological children, unless approved in advance by the probation officer.

Not accept or commence employment or volunteer activity without prior approval of the probation officer, and employment should be subject to continuous review and assessment by the probation officer.

Not loiter within 200 yards of a school, schoolyard, playground, park, amusement center/park, public swimming pool, arcade, daycare center, carnival, recreation venue, library and other places primarily frequented by persons under the age of 18, without prior approval of the probation officer.

Not possess or view any materials such as videos, magazines, photographs, computer images or other matter that depicts "sexually explicit conduct" involving children as defined by 18 USC § 2256(2) and/or "actual sexually explicit conduct" involving adults as defined by 18 USC § 2257(h)(1), and not patronize any place where such materials or entertainment are the primary material or entertainment available.

Complete a sex offender evaluation, which may include periodic psychological, physiological testing, and completion of a visual reaction time (VRT) assessment, at the direction of the court or probation officer. If deemed necessary by the treatment provider, the offender shall participate and successfully complete an approved state-certified sex offender treatment program, including compliance with treatment requirements of the program. The Court authorizes the release of the presentence report, and available psychological evaluations to the treatment provider, as approved by the probation officer. The offender will allow reciprocal release of information between the probation officer and the treatment provider. The offender may also be required to contribute to the costs of services rendered in an amount to be determined by the probation officer, based on ability to pay. Polygraph examinations may be used following completion of the formal treatment program as directed by the probation officer in order to monitor adherence to the goals and objectives of treatment and as a part of the containment model.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on: December 16, 2024

Respectfully submitted:
JENNIFER K. WALKER
CHIEF PROBATION OFFICER

by _____
Keyonna Johnson
Senior U.S. Probation Officer
(619) 557-7199

Reviewed and approved:

_____
Paula Burke
Supervisory U.S. Probation Officer

mcs

PROB12CW December 16, 2024

VIOLATION SENTENCING SUMMARY

1. **Defendant:** SANDOVAL, Roberto Antonio

2. **Docket No.** (Year-Sequence-Defendant No.)**:** 16CR01694-001-JLS

3. **List Each Violation and Determine the Applicable Grade** (*See* USSG § 7B1.1)**:**

Violation(s)	**Grade**
Possess or view sexually explicit material	C
Frequenting websites with sexually explicit material	C

4. **Most Serious Grade of Violation** (*See* USSG § 7B1.1(b)) [C]

5. **Criminal History Category** (*See* USSG § 7B1.4(a)) [II]

6. **Range of Imprisonment** (*See* USSG § 7B1.4(a)) [to months]

7. **Unsatisfied Conditions of Original Sentence**: List any restitution, fine, community confinement, home detention, or intermittent confinement previously imposed in connection with the sentence for which revocation is ordered that remains unpaid or unserved at the time of revocation (*See* USSG § 7B1.3(d)):

Restitution ($)		Community Confinement	
Fine($)		Home Detention	
Other		Intermittent Confinement	

THE COURT ORDERS:

X AGREE. THE ISSUANCE OF A SUMMONS ORDERING THE OFFENDER TO APPEAR BEFORE THE COURT ON JANUARY 17, 2025, AT 1:30 P.M., TO SHOW CAUSE WHY SUPERVISED RELEASE SHOULD NOT BE MODIFIED.

_____ DISAGREE. A NO-BAIL BENCH WARRANT BE ISSUED BASED UPON A FINDING OF PROBABLE CAUSE TO BRING THE OFFENDER BEFORE THE COURT TO SHOW CAUSE WHY SUPERVISED RELEASE SHOULD NOT BE REVOKED FOR THE ALLEGED VIOLATIONS. THE PETITION AND THE WARRANT WILL BE SEALED UNTIL THE OFFENDER HAS BEEN ARRESTED ON THE WARRANT AND THEN THE PETITION AND WARRANT MAY BE UNSEALED. NOTWITHSTANDING THE SEALING, A COPY OF THE PETITION AND WARRANT WILL BE GIVEN TO THE U.S. MARSHAL FOR USE BY LAW ENFORCEMENT.

_____ Other _____

Janis L. Sammartino
The Honorable Janis L. Sammartino
U.S. District Judge

12/16/2024
Date